

TENTATIVE RULING

Case: **Accardi v. Accardi**
 Case No. CV2025-0939

Hearing Date: **June 24, 2026** **Department Thirteen** **9:00 a.m.**

Defendant Giovanna Accardi's request for judicial notice is **DENIED**. (Evid. Code, §§ 452, 453.) The documents are irrelevant to the Court's determination of the motion. (*Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825 ["Any matter to be judicially noticed must be relevant to a material issue."].)

Plaintiffs Filippa Ferrando and Vito Accardi's motion for distribution of funds after partition is **GRANTED IN PART**. (Code Civ. Proc., §§ 872.140, 873.820, 874.010, 874.040.) The Court finds that, based on the deemed admissions, defendant is responsible for plaintiffs' portion of the costs of sale (\$32,767.77) and reimbursing plaintiff Filippa Ferrando (\$5,962.74). (See Code Civ. Proc., §§ 874.010, 874.040; Carrillo decl., ¶ 6, Exhibit 3; Robinson decl., ¶¶ 4-13, Exhibit 9; Ferrando decl., ¶¶ 4-12.) However, plaintiffs have failed to adequately support their counsel's hourly rates. (*Finney v. Gomez* (2003) 111 Cal. App. 4th 527, 549-550; see also *Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1004; Underwood decl.; Carrillo decl.) Therefore, the Court declines to impose attorneys' fees against defendant. (See Underwood decl., ¶¶ 8-9, Exhibit 10.)

Defendant's request for attorneys' fees and costs is **DENIED**. (Code Civ. Proc., § 874.010.) Based on the deemed admissions, defendant is unable to recover attorneys' fees or costs from plaintiffs. (Carrillo, ¶ 6, Exhibit 3.)

Therefore, the Court orders **\$228,598.62** be distributed to plaintiffs and **\$113,163.98** be distributed to defendant. (Robinson decl., ¶¶ 5, 16, Exhibit 9; Carrillo decl., ¶ 13, Exhibit 8; Ferrando decl., ¶¶ 4-12.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: Birkenbuel v. Ford dba Custom Upfits
Case No. CV2025-2550

Hearing Date: June 24, 2026 **Department Fourteen** **9:00 a.m.**

Defendant Todd Ford dba Custom Upfits’ motions to compel further responses to form interrogatories, special interrogatories, and requests for production are **DENIED**. (Code Civ. Proc., §§ 2030.300, 2031.310.) “Unless notice of [a motion to compel further discovery] is given...on or before any specific...date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand.” (Code Civ. Proc., §§ 2030.300, subd. (c), 2031.310, subd. (c).) The parties agreed that defendant’s deadline to file these motions to compel further was May 11, 2026. (Falcone decls., ¶ 3; Salaber decl., ¶ 5.) However, plaintiff Clint Birkenbuel did not receive notice of these motions until May 12, 2026 – one day late. (Salaber decl., ¶ 7, Exhibit B.) As plaintiff objects on this basis, this Court is “without authority to rule on [these] motions to compel other than to deny them.” (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Defendant’s applications for discretionary relief are **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 473, subd. (b).) As defendant seeks relief in its replies brief, plaintiff was not given an opportunity to respond. Accordingly, the Court declines to consider defendant’s applications. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1538 [noting that “[p]oints raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument”], citation omitted.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.